TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 28, 2024
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Aaron Butner, Julian Hopkins.
Absent: Elliott Barrow, Molly Hall.
Staff: Kara Browder, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Ms. Stevens seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments, Mr. Wood closed public comment.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-33-24, 1464 Kinglet Drive, TMS# 560-12-00-028. Request for relief from §156.111(A)(5) to allow an accessory building to exceed the maximum height requirement by 5-feet 3-inches.**

This item was withdrawn by the applicant.

2. Case V-34-24, 606 Deytens Court, TMS# 559-06-00-057. Request for relief from § 156.303(Table) to allow an encroachment into the rear setback.

- Ms. Browder reviewed staff comments with the Board.

- Mr. David Williamson, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed the public hearing.

- *Mr. Branch moved to approval based on the findings that it is a unique lot on a cul-de-sac, the positioning of the house prohibits adequate use of property and the owner should be able to add a modest porch to home, and there would be no detriment to the neighborhood as evidenced by the signature from the surrounding neighbors in favor of the request. Mr. Hopkins seconded the motion. Motion passed on a 4 to 1 vote with Mr. Butner, Mr. Branch, Mr. Hopkins and Ms. Stevens in favor; Mr. Wood opposed.*

3. Case V-35-24, 3643 Marginal Road, TMS# 614-01-00-010. Request for relief from §156.111(A)(4) to exceed the accessory structure building footprint maximum requirement by 758sqft. Correspondence

- Ms. Browder reviewed staff comments with the Board.

- Mr. Ryan Neville, attorney for applicant, and Mr. Anthony Stelluti reviewed the request with the Board.

- Ms. Beth Hugie, 3661 Tower Drive, expressed concern that this was a commercial property and business. She suggested that this should be verified prior to giving any approvals. She suggested that all regulations and requirements should be followed.

- Mr. George Hugie, 3661 Tower Drive, agreed with Ms. Hugie that the property regulations should adhered to.

Mr. Naquan Scott, 3609 Marginal Rd, stated that he drives by the property on a regular basis. He stated that he has a similar structure on his property. He stated that the structure cannot be seen from the street.

Mr. Neville stated that the structure cannot be seen from the street.

Mr. Jeff Stillwagon, 3718 Channel View, stated that the structure appears to be utilized for personal use.

There being no further comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

Mr. Wood moved for denial based on the findings that the required criteria for a variance has not been met and a variance cannot be granted due to a self-imposed hardship. Mr. Branch seconded the motion. Motion passed on a 4 to 1 vote with Mr. Branch, Mr. Hopkins, Ms. Stevens and Mr. Wood in favor; Mr. Butner opposed.

4. Case V-37-24, 3718 Channel View, TMS# 596-08-00-057. Request for relief from §156.106(B) to encroach into the impervious surface setback. The ordinance requires a 30-foot setback from the DHEC-OCRM critical line for all impervious surfaces on this property.

Ms. Browder reviewed staff comments with the Board.

Mr. Jeff Stillwagon and Ms. Becki Phelps, owners, reviewed the request with the Board.

There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

Mr. Butner moved for approval based on the findings that there are extraordinary conditions due to the configuration of the lot and due to infiltration of the tide water a portion of their lot cannot be utilized, utilization of the property is unreasonably restricted to the lot configuration and the location of the home on the lot, and it would not be a detriment to the

neighborhood as it would enhance the property. Mr. Branch seconded the motion. Motion failed on a 2 to 3 vote with Mr. Butner and Mr. Branch in favor; Mr. Hopkins, Ms. Stevens and Mr. Wood opposed.

- *Mr. Hopkins moved for denial as it does not meet the required criteria for a variance. Ms. Stevens seconded the motion. Motion passed on a 3 to 2 vote with Mr. Hopkins, Ms. Stevens, and Mr. Wood in favor; Mr. Butner and Mr. Branch opposed.*

There being no further business, the meeting adjourned at 7:06 pm.

Submitted by,
L. Lynes
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